

		Decl. ¶ 6, Ex. 2 at FROG Nos. 6.1 – 6.3.) Good cause exists for an IME to be performed on Plaintiff. Although a proper demand for IME was made, Plaintiff refused and/or failed to appear for the examination. Plaintiff does not appear to have issued a formal objection to the demand and did not oppose the present motion. Plaintiff is ordered to appear for an IME before Dr. Judy Ho Gavazza, Ph.D., ABPP, ABPdN, CFMHE, at her office located at 1600 Rosecrans Avenue, Media Center 4th Floor, Manhattan Beach, CA 90266, at a date mutually convenient to Plaintiff and Dr. Ho, but not later than 20-days after the hearing on this motion. The tests and time limit permitted are those listed in the stipulation Defendant offered. (Valenti Decl., Ex. 7.) <i>Defendant to give notice.</i>
6.	Cortez v. Bhatt 23-1320179	Before the Court are three motions to compel compliance with deposition subpoenas filed by Defendant Meet Bhatt d.b.a. WaterMart ("Defendant"). The motions are CONTINUED to January 9, 2025, at 1:30 p.m. in Department C18. There are no proofs of service showing the deposition subpoenas or these motions were served on the nonparty witnesses. No oppositions were filed. It is thus unclear whether the subpoenas and these motions were properly served on the deponents such that compliance can be compelled. (See <i>Code Civ. Proc.</i>, § 2020.220(c); <i>Cal. Rules of Court</i>, rule 3.1346.) Defense counsel states in his declarations in support of the motions that the deposition subpoenas and these motions were served on the nonparty witnesses, but no proofs of service of same are submitted with the moving papers. Accordingly, the motions are CONTINUED as stated above to allow Defendant an opportunity to file proofs of service showing the deposition subpoenas and the moving papers were served on the nonparty witnesses as stated in counsel's declarations. Said proofs of service are to be filed at least 5 court days prior to the hearing. <i>Counsel for Defendant is ordered to give notice of this ruling.</i>
7.	Alimadadian v. M3Live Bar & Grill, Inc. 15-822570	Before the Court at present is the "Joint Motion of Judgment Creditor Cyrus Alimadadian and IRA Resources, Inc. to Remove IRA Resources Inc. as a Judgment Creditor," filed on 7/29/24. The Motion is GRANTED.

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		The Motion seeks a correction to remove "IRA Resources, Inc." as a creditor from the Amended Judgment, to show that the real party in interest is "CYRUS ALIMADADIAN, Individually and as Holder of IRA RESOURCES INC. FBO CYRUS ALIMADADIAN 35-36721." The Motion shows that such relief is appropriate here, as Cyrus Alimadadian is the real party in interest. Under <i>C.C.P. § 367</i>, every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute. The real party in interest, as to the assets held by IRA Resources, Inc. for Mr. Alimadadian, is Mr. Alimadadian. The Request for Judicial Notice filed as ROA 680 is GRANTED under <i>Ev. Code §452(d)</i>. Counsel for Mr. Alimadadian is to submit a proposed order in accordance with <i>C.R.C. 3.1312</i> which reflects the necessary correction, and to <i>give notice of this ruling</i>.
8.	Frank v. Schools First Federal Credit Union 24-1400014	Defendant SchoolsFirst Federal Credit Union's ("Defendant") demurrer to plaintiff Henrik Frank's ("Plaintiff") Complaint is SUSTAINED in part and OVERRULED in part. The court first notes Defendant failed to produce the required meet and confer declaration pursuant to <i>Civ. Proc. Code § 430.41</i>. In the future, if Defendant fails to properly meet and confer and produce the required declaration, the court may continue any hearing on demurrer to a date several weeks after any late meet and confer efforts have been accomplished. A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>).) The issue is the sufficiency of the pleading, not the truth of the facts alleged. Thus, no matter how unlikely or improbable, the allegations made must be accepted as true for the purpose of ruling on the demurrer. (<i>Del E. Webb Corporation v. Structural Materials Co.</i> (1981) 123 Cal.App.3d 593, 604.) Absent court orders or other items subject to judicial notice, or items attached as exhibits to the complaint, the court may not consider the contents of pleadings or other exhibits when ruling on a demurrer. (<i>Day v. Sharp</i> (1975) 50 Cal.3d 904, 914; <i>Sosinsky v. Grant</i> (1992) 6 Cal.App.4th 1746, 1749.) "In our examination of the complaint we are guided by the well settled principles governing the testing of its sufficiency by demurrer: A demurrer admits all material and issuable facts properly pleaded. [Citations omitted.] However, it does not admit contentions, deductions or conclusions of fact or law alleged therein. [Citations